

independent of legislative authorization.⁴ 11 W. Holdsworth, *History of English Law* 569-575 (1938). In short, by 1787 the English prerogative to pardon was unfettered except for a few specifically enumerated limitations.

The history of our executive pardoning power reveals a consistent pattern of adherence to the English common-law practice. The records of the Constitutional Convention, as noted earlier, reveal little discussion or debate on § 2, cl. 1, of Art. II. The first report of the Committee on Detail proposed that the pertinent clause read: "He [the President] shall have power to grant reprieves and pardons; but his pardon shall not be pleadable in bar of an impeachment."⁵ This limitation as to impeachments tracked a similar restriction upon the English royal prerogative which existed in 1787. 4 W. Blackstone, *Commentaries* *399-400. An effort was made in the Convention to amend what finally emerged as § 2, cl. 1, and is reflected in James Madison's *Journal* for August 25, 1787, where the following note appears:

"Mr. Sherman moved to amend the 'power to grant reprieves and pardons' so as to read 'to grant reprieves until the next session of the Senate, and pardons with consent of the Senate.'" 2 M. Farrand, *Records of the Federal Convention of 1787*, p. 419 (1911).

⁴ In *Ex parte Wells*, 18 How. 307 (1856), this Court expressed the view that legislative authorization was essential to the use of banishment from the realm as a commutable punishment by the English Crown. *Id.*, at 313. However, that conclusion was no more than dictum and is historically incorrect. Indeed, about the time that *Wells* was decided Parliament abolished banishment as a penalty in England, but the Crown retained and continued to exercise the power to annex such conditions to pardons. 11 Holdsworth, *supra*, n. 1, at 575.

⁵ 2 M. Farrand, *Records of the Federal Convention of 1787*, p. 185 (1911).